

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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MARIA APONTE,

Plaintiff,

VERIFIED COMPLAINT

- against -

Index No.

**THE CITY OF NEW YORK, POLICE OFFICER
"SCHUMACHER", SHIELD NO. 946640, AND
OTHER MEMBERS OF THE NEW YORK CITY
POLICE DEPARTMENT, NAMES CURRENTLY
UNKNOWN,**

Defendants.
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Plaintiff, complaining of the Defendants, by her attorneys, **ROURA &
MELAMED**, respectfully allege, upon information and belief as follows:

FIRST CAUSE OF ACTION

1. The Defendant, **THE CITY OF NEW YORK** (hereafter called the
"**CITY**") was and still is a Municipal Corporation created, organized and existing under and by
virtue of the laws of the State of New York.

2. The Plaintiff, **MARIA APONTE**, has complied with all the conditions
precedent to the commencement of this action against the Defendants in that a Notice of Claim was
filed on May 17, 2016 within ninety days of the accrual of these causes of action, more than thirty
days have elapsed since the presentation of the Notice of Claim and the claim remains unadjusted
by the Defendants.

3. The Defendant, **CITY**, has held a hearing pursuant to Section 50-H of the
General Municipal Law of the State of New York on August 15, 2016.

4. This action has been commenced within one year and ninety days of the accrual of the causes of action.

5. At all times hereafter mentioned, the **CITY** operated, maintained, managed and controlled a police department known as the New York City Police Department (hereafter referred to as "**NYPD**").

6. The Defendants, **POLICE OFFICER SCHMACHER SHIELD NO. 946640** (hereafter referred to as "**P.O. SCHUMACHER**"), was a police officer of the **NYPD** and employed by the Defendants, **CITY**.

7. The names of the other members of **NYPD** named as Defendants are unknown, (hereafter referred to as "**P.O.'S DOE**"), but were all police officers of the **NYPD** and employed by the Defendant, **CITY**.

8. On February 28, 2016, at approximately 3:00 A.M. the Plaintiff, **MARIA APONTE**, was lawfully and properly in her residence located at 326 Wyona Street, Brooklyn, New York.

9. While the Plaintiff, **MARIA APONTE**, was lawfully and properly within her residence she was confronted and placed in fear of her life, safety and well-being by several uniformed males, later found to be police officers of the **NYPD**, including **P.O. SCHUMACHER** and/or the **P.O.'S DOE**.

10. While the Plaintiff, **MARIA APONTE**, was lawfully at her residence, the above referenced members of the **NYPD** came into her apartment and without justification forcibly assaulted, battered, pushed and threw the Plaintiff, **MARIA APONTE**, to the ground, striking her head and rendering her unconscious.

11. The above-referenced members of the **NYPD**, acting in their official capacity as employees of the Defendant **CITY** in the **NYPD**, without any just cause or provocation and under color of their authority as members of the **NYPD**, wrongly assaulted, battered and struck, the Plaintiff **MARIA APONTE**, causing her serious injuries.

12. The above-referenced members of the **NYPD** acting in their capacity as employees of the Defendant **CITY** in the **NYPD**, without any just cause or provocation, wrongly restrained, confined and/or arrested the Plaintiff, **MARIA APONTE**, all of which caused her harm and injury.

13. Solely as a result of the above, the Plaintiff, **MARIA APONTE**, has to suffered severe and permanent bodily and mental injuries and loss of freedom, sought medical care and treatment, suffered shame, harm, and embarrassment, has been prevented from attending her usual employment, duties and activities, and has sustained pain and suffering all in an amount that exceeds the monetary jurisdiction of all lower Courts.

14. This action falls within one or more of the exceptions listed in CPLR §1602.

SECOND CAUSE OF ACTION

15. The Plaintiff, **MARIA APONTE**, repeats and realleges each allegation of the First Cause of Action as if fully set forth in this paragraph.

16. **P.O. SCHUMAHER** as well as **P.O.'S DOE** had a duty to use reasonable care and skill while carrying out the requirement of their jobs as police officers.

17. **P.O. SCHUMAHER** and **P.O.'S DOE** had a duty to use reasonable force as well as reasonable care and skill in keeping the peace and in restraining members of public in general, and the Plaintiff, **MARIA APONTE**, in particular, if restraint by a police officer was required and necessary.

18. The Plaintiff, **MARIA APONTE**, was struck, battered, assaulted, thrown to the ground and rendered unconscious due to the negligence of the Defendants **P.O. SCHUMAHER** and **P.O.'S DOE** in their failure to carry out their job requirement and duties, and in failing to keep the peace and/or properly restrain the Plaintiff, **MARIA APONTE**, in a reasonably safe, skillful and careful manner and/or in failing to use reasonable force as the situation required.

19. Solely as a result of the above, the Plaintiff, **MARIA APONTE**, suffered severe and permanent bodily and mental injuries and loss of freedom, sought medical care and treatment, suffer shame, harm and embarrassment, has been prevented from attending her usual employment, duties and activities, has sustained pain and suffering, all in an amount that exceeds the monetary jurisdiction of all lower Courts.

THIRD CAUSE OF ACTION

20. The Plaintiff, **MARIA APONTE**, repeats and realleges each allegation of the First and Second Causes of Action as if fully set forth in this paragraph.

21. The **CITY** was under a duty to select, and screen for hiring and retaining as police officers, only those persons who were fit and suitable for that type of employment.

22. The **CITY** was under a duty to monitor and discharge as police officers those persons who were not fit and who were unsuitable for employment.

23. The **CITY** was under a duty to train, instruct, supervise, direct and control those it hired as police officers so that they would act in a reasonable and prudent manner in their dealings with the general public and this Plaintiff, **MARIA APONTE**, in particular.

24. The **CITY** was under a duty to train, instruct, supervise, direct and control those it hired as police officers so that they would act in a reasonable and prudent manner in enforcing the laws and performance of their duties.

25. The Defendant, **CITY**, failed to properly hire, monitor, retain, train, instruct, supervise, direct, and control Defendants **P.O. SCHUMAHER** and **P.O.'S DOE**.

26. Solely as a result of the above negligence of the Defendants, the Plaintiff, **MARIA APONTE**, suffered severe and permanent bodily and mental injuries and loss of freedom, sought medical care and treatment, suffer shame, harm and embarrassment, has been prevented from attending her usual employment, duties and activities, has sustained pain and suffering, all in an amount that exceeds the monetary jurisdiction of all lower Courts.

FOURTH CAUSE OF ACTION

27. The Plaintiff, **MARIA APONTE**, repeats and realleges each allegation of the First, Second and Third Causes of Action as if fully set forth in this paragraph.

28. The assault, detention, confinement and/or arrest of the Plaintiff, **MARIA APONTE**, were all performed, countenanced, and acquiesced to by the Defendants, in their official capacity and pursuant to an official policy and custom promulgated by the **NYPD**, and all done without just cause or provocation while performed under the color of their authority.

29. The acts of the Defendants as set forth above denied the Plaintiff, **MARIA APONTE**, her privileges, rights and amenities as guaranteed to her as a citizen of the United States under the IV, V, VII and XIV Amendments of the Constitution of the United States as well as under 42 U.S.C.A. 1983.

30. The violation of the Constitutional and Civil Rights of the Plaintiff, **MARIA APONTE**, by the Defendants caused her to suffer severe and permanent bodily and mental injuries

and loss of freedom, causing her to seek medical care and treatment, suffer shame, harm and embarrassment, has prevented her from attending her usual employment, duties and activities, and caused her to sustain pain and suffering, all in an amount that exceeds the monetary jurisdiction of all lower Courts.

31. **WHEREFORE**, the Plaintiff demands judgment against the Defendants in the First, Second, Third and Fourth causes of action in amounts that exceed the jurisdictional limits of all lower courts that would otherwise have jurisdiction of this matter, together with interest and the costs and disbursements of this action.

Dated: New York, New York.
September 19, 2016

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